Data Processing Addendum

This Data Processing Addendum forms part of the Master Services Agreement between Nordwind Logistics GmbH (Controller) and Clearpath Software Ltd (Processor) and reflects the requirements of Article 28 of Regulation (EU) 2016/679 (GDPR).

Article 1

Subject matter and duration

1. The Processor processes Personal Data on behalf of the Controller solely for the provision of the Services for the duration of the Agreement.

2. The categories of data subjects are employees, drivers and customers' delivery contacts of the Controller. The data categories are contact details, location data and delivery records.

Article 2

Instructions

1. The Processor shall process Personal Data only on documented instructions from the Controller.

2. The Processor shall immediately inform the Controller if, in its opinion, an instruction infringes the GDPR or other Union or Member State data protection provisions.

Article 3

Sub-processors

1. The Controller authorises the following sub-processors: Amazon Web Services EMEA SARL (hosting, Frankfurt region) and Zendesk Inc. (support ticketing).

2. The Processor shall inform the Controller of any intended addition or replacement of sub-processors at least thirty (30) days in advance, giving the Controller the opportunity to object.

Article 4

Personal data breaches

1. The Processor shall notify the Controller without undue delay and in any event within forty-eight (48) hours after becoming aware of a personal data breach.

2. The notification shall describe the nature of the breach, the categories and approximate number of data subjects concerned, the likely consequences and the measures taken or proposed.

Article 5

Deletion and return of data

1. Upon termination of the Agreement, the Processor shall, at the choice of the Controller, return all Personal Data and delete existing copies within sixty (60) days, unless Union or Member State law requires storage.

Article 6

Audits

1. The Controller may audit the Processor's compliance with this Addendum once per calendar year, with at least thirty (30) days' prior written notice.

Article 7

International transfers

1. Personal Data shall not be transferred outside the European Economic Area except under the Standard Contractual Clauses adopted by the European Commission in Decision (EU) 2021/914.